REALTORS® Association of Edmonton

RESIDENTIAL LANDLORD BROKERAGE AGREEMENT

FOR USE IN COMMON LAW BROKERAGES

THIS RESIDENTIAL LANDLORD BROKERAGE AGREEMENT (THE "AGREEMENT") IS AMONG THE LANDLORD AND THE LANDLORD'S BROKERAGE (THE "BROKERAGE"):

AGREEMENT #:

THE LANDLORD:

NAME:

NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

THE BROKERAGE:

BROKERAGE NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

BROKER, ASSOCIATE BROKER, OR ASSOCIATE AUTHORIZED TO REPRESENT THE BROKERAGE:

This Agreement is entered into by the Landlord and the Brokerage on the basis of the following facts:

(a) the Landlord owns the Property;

(b) the Landlord wishes to retain the services of the Brokerage and benefit from agency representation in the lease of their Property;

(c) the Brokerage may also represent tenants who are interested in leasing the Property;

(d) concurrent representation by the Brokerage of both the Landlord and tenant's interested in the Property, prevents the Brokerage from discharging the agency and fiduciary obligations it owes to each of the Landlord and these tenants;

(e) concurrent representation is permitted by law only with the fully informed and voluntary consent of the Landlord;

(f) the Landlord has received and read the Consumer Relationships Guide (the "CRG") published by the REALTORS® Association of Edmonton ("RAE") and this Agreement, and has been given an opportunity to seek further information and independent advice concerning representation by a designated agent and the other relationships discussed therein; and

(g) the Brokerage is a member of the REALTORS® Association of Edmonton (the "Association").

In consideration of the Brokerage listing the Property, the Landlord hereby gives the Brokerage the exclusive right to offer the Property for lease for the price of $_____/ month including GST, if applicable. All goods and utilities excluded except: .

1. THE PROPERTY

The Property is located at (municipal street address) _____

_____

having the legal description of Plan _____ Block _____ Lot/ Unit _____ Other:

(the "Property").

2. TERM

This Agreement will commence at _____.m. on the _____ day of _____, 20____ (the "Commencement Date") and will expire at _____.m. on the _____ day of _____, 20_____ (the "Expiry Date"). The term of this Agreement begins on the Commencement Date Date and ends on the occurrence of an event listed in Section 17.1 and Section 17.2 (the "Term").

3. POSSESSION DATE

The proposed possession date is _____.

4. MLS® SERVICES

4.1 All MLS® Listings must:

(a) be for a minimum duration of 60 days;

(b) provide compensation for cooperating brokers for the lease of the Property; and

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(c) not exclude any licensed industry member from acting as a cooperating broker.

4.2 This Agreement must be completed in full and must include the names of the parties, the Term, the address and legal description of the Property, the price at which the Property is being offered, the fee being offered to cooperating brokerages, the possession date, and other Property dependent information necessary for the marketing of the Property. This information will be entered into the MLS® System.

4.3 Changes to the information described in Section 4.2 will require the signature of the Landlord.

4.4 Should the Landlord not wish its name to be entered into the MLS® System, this is permissible upon receipt of a written request from the Landlord through its brokerage.

4.5 The Landlord's name and contact information shall not appear on REALTOR.ca or in the public remarks on the MLS® System.

4.6 The Brokerage may permit the Landlord to reserve the right to lease the Property itself. If Landlord's rights reserved apply to a listing, that fact shall be disclosed to other members of the Association via the MLS® System.

4.7 The Landlord acknowledges that:

(a) the information being provided to the MLS® System is not confidential information as defined in the Personal Information Protection Act ("PIPA");

(b) once the information is entered into the MLS® System it will endure and cannot be removed; and

(c) the Landlord has no right to restrict the use of information entered into the MLS® System in any way.

Note: MLS® Listing means a property is listed for lease on the Association's MLS® System. The trademarks MLS®, Multiple Listing Service® and the associated logos are owned by the Canadian Real Estate Association ("CREA") and identify the quality of services provided by real estate professionals who are members of CREA.

5. BROKERAGE'S OBLIGATIONS

5.1 The Brokerage will:

(a) obey the lawful and reasonable instructions of the Landlord;

(b) exercise reasonable care and skill in the performance of this Agreement;

(c) use commercially reasonable efforts to market the Property and promote the interests of the Landlord;

(d) subject to Section 19, act only as the Landlord's agent;

(e) subject to Section 19, be loyal to the Landlord and act in the Landlord's best interests at all times;

(f) make timely and full disclosure of all conflicts of interest that may arise between the Landlord's interest and those of the Brokerage or tenant;

(g) at the earliest reasonable opportunity, advise any tenant interested in the Property that the Brokerage is the agent of the Landlord;

(h) not appoint another brokerage to act on behalf of the Landlord without the Landlord's prior written consent;

(i) assist the Landlord in negotiating favourable terms and conditions with a tenant;

(j) assist the Landlord in preparing and complying with a legally binding lease of the Property;

(k) disclose to the tenant all material latent defects affecting the Property known to the Brokerage;

(l) hold all monies received by the Brokerage in trust in accordance with the provisions of the Real Estate Act (Alberta) (the "REA");

(m) keep the Landlord fully informed regarding the marketing of the Property and any resulting transaction;

(n) disclose to the Landlord, in a timely manner, all relevant facts affecting the transaction known to Brokerage;

(o) present, in a timely manner, all offers and counter offers to and from the Landlord;

(p) advise the Landlord to obtain expert advice on matters of importance to the Landlord;

(q) comply with the provisions of the REA and its regulations, the rules and bylaws of the Real Estate Council of Alberta, and the rules and regulations of the Association and CREA; and

(r) provide a true copy of this Agreement to the Landlord after all parties have signed it.

5.2 The Landlord requests and the Brokerage agrees to provide, the following services:

(a) to advertise the Property; ☐ Yes ☐ No

(b) to place a "For Lease" sign on the Property; ☐ Yes ☐ No

(c) to install a lock-box on the Property to provide access to authorized persons; ☐ Yes ☐ No

(d) to show the Property at times acceptable to the Landlord and, if any, the tenant(s); and ☐ Yes ☐ No

(e) other services to form part of this Agreement: _____

_____.

6. BROKERAGE FEE

6.1 The Landlord will pay the Brokerage as compensation $_____ plus GST (the "Fee"):

(a) if, during the Term:

(i) a legally enforceable offer to lease for the Property, from whatever source it is obtained, is entered into among the Landlord and a tenant (other than a tenant who has been specifically excluded in writing from this Agreement) and the lease is subsequently completed;

(ii) the Landlord, without legal justification, fails to complete the lease; or

(iii) an unconditional offer to lease the Property upon the terms specified in this Agreement is presented to the Landlord which the Landlord refuses to accept; or

(b) if, up to and including 90 days after the expiration of this Agreement (the "Hold-Over Period"):

(i) a legally enforceable offer to lease the Property is entered into among the Landlord and a tenant (other than a tenant who has been specifically excluded in writing from this Agreement) who was introduced to the Property or the Landlord

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during the Term, by whatever means or person and whether or not the Brokerage is the effective cause of such offer to lease, and the lease is subsequently completed; or

(ii) the Landlord, without legal justification, fails to complete the lease.

(c) This Section 6.1 will not apply where the Landlord has signed another landlord brokerage agreement after the expiration of this Agreement and the Fee is payable to another brokerage according to the terms of that other landlord brokerage agreement as a result of entering into a lease.

6.2 The Landlord will pay the Fee to the Brokerage no later than the second business day after the lease is completed unless the Landlord and the Brokerage otherwise agree in writing. Any hold backs or conditions accepted by the Landlord or the Landlord's lawyer will not delay payment of the Fee to the Brokerage.

6.3 The Landlord acknowledges that the Brokerage will offer $_____ plus GST as compensation to cooperating brokerages to be paid by the Brokerage out of the Fee.

6.4 The Landlord will pay the brokerage alternate compensation in the amounts specified below:

(a) if, during the Term or Hold-Over Period, a legally enforceable offer to lease is entered into among the Landlord and a tenant, and the tenant without legal justification fails to complete the lease, the Landlord will pay the Brokerage _____% of the forfeited deposits under the lease; or

(b) if, during the Term, the Landlord should withdraw the Property from the market, the Landlord will reimburse the Brokerage for all reasonable expenses incurred in the performance of this Agreement prior to the date on which the Landlord notifies the Brokerage in writing of the Landlord's decision, provided that such reimbursement will not prejudice any other claim to compensation to which the Brokerage may become entitled under Section 6 of this Agreement.

6.5 The Brokerage agrees not to accept any other compensation, whatever its form (including finder's fees, referral fees and gifts) and from whatever source (including the tenant, another brokerage or contractor), directly or indirectly, related to its agency under this Agreement unless, before accepting such compensation, the Brokerage has:

(a) fully disclosed in writing to the Landlord all relevant facts relating to the other compensation, including the maximum amount to be received; and

(b) obtained the Landlord's written consent to the Brokerage receiving such compensation.

7. DEPOSITS

7.1 If any deposits are held by the Brokerage they must be held in trust according to the REA

7.2 Notwithstanding Section 7.1, if any deposits are held by the Brokerage pursuant to a signed offer to lease or lease, such deposits will be held in accordance with the terms of the signed offer to lease or lease and the Residential Tenancies Act.

8. SECURITY FOR THE BROKERAGE FEE

8.1 The Landlord now encumbers all of its interest in the Property for the benefit of the Brokerage to secure payment of all money which may be owed by the Landlord to the Brokerage under this Agreement. The parties agree that the Brokerage is entitled to encumber the Property in accordance with the Land Titles Act (Alberta). The Landlord now authorizes the Brokerage to file and maintain a caveat to give notice of this encumbrance.

8.2 If the Brokerage successfully enforces any of its rights or remedies under this section, the Landlord will pay reasonable lawyer and client legal fees and costs incurred by the Brokerage.

8.3 If the Landlord owes money under this Agreement and the Brokerage does not wish to enforce this Agreement against the Landlord then upon mutual agreement among the Brokerage and the tenant's brokerage, the Brokerage may assign this Agreement to the tenant's brokerage. If this Agreement is assigned, then the tenant's brokerage may enforce this Agreement against the Landlord to collect the portion of the Fee or brokerage alternate compensation, plus GST, to which the tenant's brokerage is entitled, and the tenant's brokerage will have the same rights and security given to the Brokerage according to Section 8 of this Agreement.

9. DUTIES OF THE LANDLORD

9.1 The Landlord will:

(a) provide the Brokerage with all the information necessary for the listing and marketing of the Property;

(b) communicate and cooperate with the Brokerage in a timely manner;

(c) immediately advise the Brokerage of any change in status of the Property or in the information provided by the Landlord;

(d) make commercially reasonable efforts to insure the Property and its contents against loss or damage due to perils that are normally insured against for similar properties. The Landlord will make commercially reasonable efforts to ensure that such insurance and all utilities will be effective even when the Property is vacant;

(e) comply with all privacy laws; and

(f) immediately advise the Brokerage of any material change in the physical condition or status of the Property or in the information provided by the Landlord.

9.2 The Landlord will immediately advise the Brokerage:

(a) during the Term, of all inquiries by interested tenants or their representatives received by the Landlord;

(b) during the Term, of all offers to lease from interested tenants or their representatives and will deliver such offers to the Brokerage;

(c) during the Hold-Over Period, of any offers to lease the Property accepted by the Landlord from a tenant introduced to the Landlord during the Term; and

(d) during the Hold-Over Period, of any offers or counter-offers regarding the Property made by the Landlord and accepted by a tenant introduced to the Landlord during the Term.

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10. IMPORTANT INFORMATION

10.1 The Landlord will provide information regarding the matters described in Section 12.2 and evidence of municipal compliance or non-conformance to the Brokerage within ten (10) days of the Landlord signing this Agreement and at the Landlord's expense.

10.2 In the event the Landlord fails to provide the information required under Section 10.1, the Brokerage is authorized to obtain it on the Landlord's behalf and at the Landlord's expense.

10.3 Landlords are required by common law to disclose defects that are hidden, not visible or discoverable through a reasonable inspection of the Property, and that render the Property dangerous or potentially dangerous to the occupants, or unfit for habitation. Landlords may also be required to disclose government and local authority notices, lack of development permits and hidden defects that would involve great expense to remedy.

Are you aware of any such defects in the Property? ☐ Yes ☐ No _____ Landlord's Initials

Have you received any government or local authority notices? ☐ Yes ☐ No _____ Landlord's Initials

Are you aware of any lack of permits for any development including secondary suites, on the Property? ☐ Yes ☐ No _____ Landlord's Initials

Are you aware of any hidden defects that would involve great expense to remedy? ☐ Yes ☐ No _____ Landlord's Initials

10.4 Secondary suites are only permitted on the Association's MLS® System with evidence of municipal compliance. Properties without evidence of municipal compliance can be withdrawn from the Association's MLS® System. _____ Landlord's Initials

11. ADVICE TO LANDLORD

The Landlord is advised that the Brokerage is providing services as a real estate professional, and the Brokerage does not represent to provide any advice that a lawyer, tax advisor, lender, appraiser, surveyor, structural engineer, property inspector, or other professional service provider would normally provide.

12. LANDLORD WARRANTIES

12.1 The Landlord warrants the following:

(a) the Landlord has the authority to lease the Property and enter into this Agreement;

(b) the Property is not currently the subject of any landlord brokerage agreement; and

(c) all information provided to the Brokerage is accurate to the best of the Landlord's knowledge.

12.2 The Landlord warrants that, to the best of the Landlord's knowledge, the following are truthful and accurate:

(a) the current use of the Property complies with the existing municipal land use bylaw;

(b) the location of buildings and other improvements on the land complies with all relevant municipal bylaws, regulations, or relaxations granted by the appropriate municipality prior to the lease being completed, or the buildings and other improvements on the land are "non-conforming buildings" as that term is defined in the Municipal Government Act (Alberta);

(c) the current use of the land and buildings and the location of the buildings and other improvements on the land comply with any restrictive covenant on title; and

(d) where applicable, the Landlord has complied with the bylaws of the condominium corporation.

13. LANDLORD'S CONFIDENTIAL INFORMATION WILL BE PROTECTED

The Brokerage undertakes it will:

(a) not use confidential information received from the Landlord, or obtained as a result of providing services under this Agreement, for its own gain or the gain of its employees or to the prejudice of the Landlord's interests; and

(b) not disclose any confidential information concerning the Landlord to any other brokerage or other person unless authorized by the Landlord or required by law.

14. USE AND DISTRIBUTION OF LANDLORD INFORMATION

14.1 The Landlord understands and consents to the collection, use and disclosure of personal information (as defined in the PIPA) by the Brokerage and the Association for the purpose of this Agreement and such other use as is consistent with listing and marketing the Property including, but not limited to:

(a) listing and advertising the Property using any medium including electronic media, interior and exterior photographs and video; and

(b) retaining and disclosing any listing and lease information, including price, which may be used by the Brokerage for any purpose relating to their business including conducting comparative analysis and disclosing such information to other persons such as appraisers and other brokerages.

14.2 If the Landlord has any questions about the collection of personal information, the Landlord can contact the privacy officer for the Brokerage using the Brokerage's contact information on page 1.

14.3 Subject to Section 4 of this Agreement, the Landlord consents to placement of the listing and lease information by the Brokerage into the Association's MLS® System and acknowledges that the Association's MLS® System is the property of the Association.

14.4 The Landlord further acknowledges that the Brokerage and the Association may:

(a) distribute the information to any persons authorized to use such service which may include other brokers, government departments, appraisers, municipal organizations, and others;

(b) market the Property, at its option, in any medium, including electronic media;

(c) compile, retain and publish any statistics including historical listing service data which may be used by the Brokerage and Association members to conduct comparative market analyses; and

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(d) make such other use of the information as the Brokerage and the Association deem appropriate in connection with the listing, marketing, and leasing of real estate.

15. INDEMNIFICATION

The Landlord will save, hold harmless and indemnify the Brokerage and any of its respective officers, directors and employees (the "Indemnified Parties") for any and all alleged or actual claims, losses, costs, damages, expenses, penalties, fines, legal fees on a solicitor client cost basis, or any other amounts for which the Indemnified Parties may incur or be found liable to pay and which are attributable or arise out of the Indemnified Parties reasonable and good faith reliance on representations made, or information provided by the Landlord.

16. ADDITIONAL TERMS

16.1 The Landlord agrees that:

(a) the Brokerage may represent other landlords and, subject to Section 19, tenants;

(b) the Brokerage cannot disclose to the Landlord confidential information obtained through any other agency relationship to which the Brokerage is or has been a party; and

(c) the Brokerage will not be obligated to seek additional offers to lease while the Property is subject to an unconditional offer to lease.

16.2 This Agreement:

(a) includes, if signed or initialed by the Landlord and attached to this Agreement, the following documents, which shall form part of this Agreement: _____ _____ _____;

(b) will constitute the entire agreement among the Landlord and Brokerage and there are no representations, warranties, collateral agreements, or conditions which affect this Agreement other than as expressed herein;

(c) is for the benefit of and will be binding upon the heirs, administrators, executors, successors and assigns of the parties; and

(d) will be governed by the laws of the Province of Alberta and the parties will submit to the jurisdiction of the Courts of the Province of Alberta for the resolution of any disputes that may arise out of this Agreement.

16.3 If any provision of this Agreement is found to be invalid, void, illegal, or not enforceable, such provision shall be considered separate and severable from this Agreement and the remaining provisions shall remain in force and be binding upon the parties.

16.4 The headings in this Agreement are inserted for convenience of reference only and shall not affect the construction of this Agreement.

16.5 No amendment to the terms of this Agreement shall be effective unless it is in writing and signed by the Landlord and the Brokerage.

16.6 If there is conflict or discrepancy between any provision added to this Agreement and any provision in the standard portion hereof, the added provision will supersede the standard provision to the extent of such conflict or discrepancy.

17. ENDING THIS AGREEMENT

17.1 Without prejudice to the acquired rights of the Landlord or the Brokerage, this Agreement will end upon:

(a) a completed agreement to lease the Property;

(b) the Expiry Date or on an earlier date than the Expiry Date if mutually agreed to by the Landlord and the Brokerage in writing;

(c) the suspension or cancellation of the Brokerage's license to trade in real estate;

(d) the Brokerage ceasing to be a member in good standing of the Association; or

(e) the bankruptcy or insolvency of the Brokerage or if it is in receivership.

17.2 Where one party to this Agreement has materially breached a part of this Agreement, the other party may, at its option, end this Agreement by notice in writing to the party in breach.

17.3 When this Agreement ends, the Brokerage will immediately:

(a) remove the Property as an active listing on any listing service;

(b) cease all marketing activities on behalf of the Landlord;

(c) remove all signs and any lockbox from the Property; and

(d) return documents and other materials provided by the Landlord.

17.4 Ending this Agreement for whatever reason does not relieve the Brokerage of its duties to account for all monies received by the Brokerage and its duty of confidentiality to the Landlord.

18. DEFINITIONS

For the purposes of this Agreement:

(a) "business day" means every day except Saturday, Sunday, and statutory holidays;

(b) "concurrent representation" means a situation in which a brokerage or an industry member represents two or more parties to a trade whose interests are seen to be in conflict;

(c) "landlord" means a person disposing or attempting to dispose of an interest in real estate by lease;

(d) "lease" includes an exchange, option, lease, or other acquisition/disposition of an interest in real estate;

(e) "lease is complete" when the lease is executed or possession is granted to the tenant, whichever occurs first; and

(f) "tenant" means a person acquiring or attempting to acquire an interest in real estate by lease.

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19. CHANGE IN REPRESENTATIVE CAPACITY OF THE BROKERAGE

19.1 If the Brokerage is also the agent of a tenant who wishes to view the Property, the Brokerage will:

(a) disclose this fact to both the tenant and the Landlord; and

(b) unless instructed otherwise by the Landlord, facilitate the viewing of the Property by that tenant and make available the marketing information that is available to all potential tenants; however, the mere viewing of the Property will not mean that the tenant is interested in the Property for the purposes of Section 19.2 below.

19.2 If the Brokerage is also the agent of a tenant who becomes interested in the Property, the Brokerage will:

(a) immediately advise the Landlord and the tenant of all relevant facts and implications of concurrent representation;

(b) give the Landlord and the tenant an opportunity to seek independent advice;

(c) obtain the written informed consent of the tenant to the Brokerage continuing to provide services to the Landlord and the tenant in a transaction brokerage relationship on the terms and conditions specified in the Transaction Brokerage Agreement (the "TBA") and in the CRG prior to writing the offer; and

(d) obtain the written informed consent of the Landlord to the Brokerage continuing to provide services to the Landlord and the tenant in a transaction brokerage relationship on the terms and conditions specified in the TBA and in the CRG prior to presenting the tenant's offer to the Landlord.

19.3 Should the Brokerage decide not to enter into a TBA or should either the Landlord or the tenant refuse to consent to transaction brokerage, unless otherwise agreed in writing by the parties, the Brokerage will continue to represent the party, be it the Landlord or the tenant, with whom it first entered into an exclusive agency relationship, and to treat the other party as a customer or to refer the other party to another brokerage.

20. NOTICES

Notices shall be delivered upon the Landlord or Brokerage, as the case may be, at the addresses listed on the first page of this Agreement, unless otherwise specified in writing. Any notice may be served personally, or by registered or certified mail postage prepaid, or by electronic means, including email. If mailed from a post office in Edmonton, such notice shall be deemed to have been received by the addressee three (3) post office business days after the date of mailing.

21. LANDLORD'S ACKNOWLEDGMENT

The Landlord, having received and read this Agreement and the CRG, and having been given the opportunity to request further information concerning this Agreement and the representation relationships described in the CRG, acknowledges this Agreement accurately sets out the terms agreed to by the Landlord and the Brokerage.

22. SIGNATURES

This Agreement may be signed by the parties in counterparts and delivered originally or electronically. The signed and delivered electronic copy is deemed to be an original. Signing may be done by wet ink, insertion by the signatory of an image of a wet ink signature, or by means of an electronic signature.

Dated at _____.m. on _____, 20 _____.

_____	_____
Landlord's Signature	Witness' Signature
_____	_____
Landlord's Printed Name	Witness' Printed Name
_____	_____
Landlord's Signature	Witness' Signature
_____	_____
Landlord's Printed Name	Witness' Printed Name
_____	_____
Signature of Broker, Associate Broker, or Associate authorized to sign on behalf of the Brokerage	Brokerage Representative's Printed Name

Landlord initial here to show you have received a copy of this Agreement: _____ Date: _____

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